

IN THE LAHORE HIGH COURT, LAHORE.

ORDER SHEET.

JUDICIAL DEPARTMENT

Writ Petition No.18537 of 2019

Malik Muhammad Mustafa

Versus

Province of Punjab through Secretary Cooperative, Lahore, etc.

S. No. of order/ Proceedings	Date of order/ Proceedings	Order with signature of Judge, and that of Parties of counsel, where necessary.
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01.04.2019 Ch. Zafar Ullah, Advocate for the petitioner.
M/s Shahid Iqbal & Saira Tufail, Advocates for respondents No.6 & 7.
Syed Muzammal Hussain, Assistant Registrar Housing-VI.

C.M. No.3-19.

Through this application, the applicant/petitioner seeks permission to place documents on record, which are taken on record subject to all just and legal exceptions. Disposed of.

Main Case.

2. Pursuant to the notice, representative of Cooperatives Department alongwith record, is present.
3. The petitioner has assailed order dated 25.03.2009 by the Secretary to the Government of Punjab (Cooperatives Department) – respondent No.2 – whereby revision petition filed by the petitioner under section 64-A of the Co-operatives Societies Act 1925 (Act of 1925) was dismissed and order dated 24.01.2019 of Registrar Cooperative Societies – respondent No.3 was upheld, in terms whereof application filed by the

petitioner for seeking approval to contest election for 3rd term, was rejected.

4. Facts, necessary for adjudication of the issue in hand, are that petitioner – being President of PCSIR Staff Cooperative Housing Society Ltd., (“PCSIR SOCIETY”) – intended to contest elections for the 3rd consecutive term, which required approval by the respondent No.3 under Rule No.31 (2) of the Model Bye-laws of the PCSIR Society. Petitioner submitted application on 18.10.2018, which was rejected vide order dated 24.01.2019. Aggrieved, the petitioner filed revision petition, which too was dismissed on 25.03.2019. Hence, this petition.

5. The petitioner claimed that exercise of authority / discretion by respondent No.3, while denying approval, was illegal, erroneous and contrary to the record. Likewise, respondent No.2 also erred while exercising revisionary jurisdiction. There is no dispute qua the exclusive authority / entitlement of the respondent No.3 to extend approval, to be granted on the basis of the information / resource material provided by the petitioner.

6. Learned counsel for the petitioner attacked the decision of the respondent No.3 primarily on the premise that reports available on record – particularly report by the Assistant Registrar – was not examined and appreciated. Per learned counsel, the respondent No.2 while deciding the revision petition remained oblivious of the report of the respondent

No.4. It was argued that denial of permission was unjustified in wake of achievements / accomplishments bagged during the two terms of the petitioner, being president and member of Managing Committee. Further contended, that respondent No.2 had discriminated the petitioner, while drawing similarity with another case, wherein the respondent No.2 had set-aside the order of the Registrar. On the issue of registration of pending criminal cases, learned counsel averred that in none of those cases, the petitioner was convicted or sentenced.

7. Learned counsel appearing for respondents No.6 and 7 disputed the contentions. It was averred that complaints were filed by members, alleging misappropriation of huge amounts and series of criminal cases were registered against petitioner.

8. Arguments heard. Available record perused.

9. In terms of Model bye-laws of PCSIR Society, the Managing Committee is elected for the term of three years. The members of the committee are not eligible to hold office for more than two consecutive terms. However, an individual member may seek to contest election for 3rd term provided approval is granted by Registrar Cooperative Societies, in terms of the bye-law No.31(2), which reads as under:

“31(2). The Managing Committee shall be elected for a term of three years. However, members of committee will not be eligible to hold office for more than two consecutive terms. An individual member may be allowed to contest for the third term with the approval of Registrar for which the society member will give detailed justification. If the new election is not held within the fixed

time, the committee will be deemed to have been dissolved and its decisions made after that date will be illegal. Registrar will appoint a care-taker committee comprising of three members or an Administrator who will have all the powers of Committee. Administrator or care-taker committee shall hold election for the new committee within 60 days or such other time as is fixed by the Registrar.”

[Emphasis underlined]

10. There is no dispute qua the authority / jurisdiction of respondent No.3. The real issue is regarding exercise of such authority / jurisdiction. The petitioner had heavily relied upon the report of the Assistant Registrar dated 30.11.2018 and subsequent report by the then Deputy Registrar Cooperative Societies – respondent No.4, submitted during the course of revisionary proceedings before respondent No.2. Report by the Assistant Registrar was submitted on the request of the then Deputy Registrar, who submitted report, dated 05.12.2018 and opposed grant of approval.

11. There is no gainsaying that this court in the exercise of judicial review jurisdiction would not dissect / dilate upon or carry out threadbare analysis of the reports and observations therein. Undoubtedly, Registrar is vested with the authority to consider and decide application by an individual member for seeking approval to contest election for 3rd term. The crucial issue is the nature and source of the material / resource to be examined by the Registrar, while determining the question of approval. Rule 31(2) per-se provides an answer. Therefore, provisioning of justifiable material / information is essential for

seeking approval, to contest election for 3rd term, and failure thereof would entail denial of such permission. The grant of approval by the respondent No.3 was largely dependent upon the justifications / reasons provided by the petitioner, in its application. I have examined the application dated 18.10.2018 submitted in this behalf. The alleged achievements mentioned therein were projected and intangible. It contained rosy illustrations but nothing concrete or substantial. The application contained elusive details qua on-going developmental works and the projects allegedly started. Mere conduct of timely meetings and availability of audited accounts are not sufficient to entitle someone to extraordinary concession of contesting election for 3rd term.

12. In terms of Rule 31(2) member of the society, interested to contest election for 3rd term, has to provide information/material. It is notable that details of criminal cases registered and any explanation thereof are conspicuous by its absence. The factum of pending criminal cases was acknowledged subsequently by the petitioner through letter dated 10.12.2018 but no explanation offered. No details are provided with the petition as well. When confronted, learned counsel for the petitioner conceded that criminal cases are pending but petitioner was not convicted. To my mind, the petitioner, in all fairness, was required to disclose and provide explanation regarding each and every criminal cases and

absence thereof demonstrated lack of fairness and honesty on the part of the petitioner. The material / information supplied to the respondent No.3 was considered and displaced by observing that reasons / justifications provided do not provide any solid ground to allow petitioner to contest elections for 3rd term. There is nothing on record to displace such observations of the respondent No.3.

13. This court, in the exercise of constitutional jurisdiction, would not assess or evaluate the reasoning / observations and findings noted by the respondent No.3. Nothing has been pointed to substantiate that such observations / findings suffer from perversity, illegality or erroneousness. This court would not substitute opinion of the respondent No.3. Reference is made to judgment reported as “KARACHI SHIPYARD & ENGINEERING WORKS LIMITED v. ABDUL GHAFAR and 2 others” (1993 SCMR 511).

14. I have examined the order dated 25.03.2019 by the respondent No.2. No illegality has been pointed therein. The attempt to draw similarity between the order dated 25.03.2019 and some alleged order passed by the respondent No.2 is unsuccessful. Every case has its own merits. The contention that identical matters are sub-judice before this Honourable Court, wherein interim reliefs were granted, is misconceived. Nothing was pointed to show that any identical / similar question of law is involved in so-called connected matters.

15. The members of PCSIR Society have filed complaints against the petitioner. Nothing has been placed on record to show appreciation of the members, minutes of the general meetings, audited accounts, affidavits and agreements, allegedly executed for carrying out projected development. It is pertinent to point that since the petitioner is claiming special / extraordinary concession therefore same was obligated to provide material / information to earn an approval.

16. The heart of controversy is that whether reasons / justifications provided were sufficient enough to convince the Registrar to accord approval, which reasons / justifications are mere projections and plans and no concrete information was provided for respondent No.3. I conclude that reasons / justifications relied upon and provided are insufficient and rightly displaced by the respondent No.3 to deny right to contest elections to the petitioner for 3rd term.

17. In the circumstances, no case is made out for showing indulgence in the exercise of judicial review jurisdiction and upset the observations / findings recorded in the orders impugned.

18. In view of the above, the petition is without any merit and same is, therefore, dismissed.

(Asim Hafeez)
Judge.

Approved for Reporting.

JUDGE.

A.D. Mian*